

2:00 PM

LINE 5

25-CIV-07415

GINA ASUZANO VS. MICHAEL STONE, ET AL.

GINA ASUZANO
MICHAEL STONE

JONAH A TOLENO
PRO SE

ORDER TO SHOW CAUSE WHY THE ANSWER OF THE ENTITY DEFENDANTS SHOULD NOT BE STRICKEN AND
DEFAULT ENTERED IN FAVOR OF PLAINTIFF AND AGAINST ENTITY DEFENDANTS

TENTATIVE RULING:

On April 21, 2026, this court heard plaintiff Gina Asuzano's motion to strike defendants One Trade LLC and One Trade's answer to plaintiff's complaint. On April 20, 2026, the court issued the following tentative ruling, which was not opposed and was therefore, adopted at the hearing:

Plaintiff's unopposed motion to strike is DENIED, without prejudice. The court agrees with plaintiff's argument, but provides an opportunity for the business entity defendants to obtain counsel.

Corporations and other business entities may not represent themselves in court but must be represented by licensed counsel. (Bus. & Prof. Code, § 6125; *Birbrower, Montalbano, Condor & Frank v. Superior Court* (1998) 17 Cal.4th 119, 128-130; *Merco Constr. Eng'rs, Inc. v. Mun. Ct.* (1978) 21 Cal.3d 724, 730; *Thomas G. Ferruzzo, Inc. v. Superior Ct.* (1980) 104 Cal.App.3d 501, 504; *CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1145 (*CLD Construction*).)

On November 14, 2025, defendant Michael Stone filed an answer on behalf of himself and defendants One Trade LLC and One Trade, a corporation (One Trade Corp.). According to the Complaint, Stone is founder, principal, and sole manager of One Trade LLC and is the founder and sole director of One Trade Corp. (Complaint, ¶ 4.) He does not provide a State Bar number on the answer or otherwise demonstrate that he is an attorney.

Plaintiff has moved to strike the answer as to defendants One Trade LLC and One Trade Corp. (the entity defendants) on the basis that those defendants are not represented by counsel, which renders their answers a nullity.

A similar situation was addressed *CLD Construction, supra*, 120 Cal.App.4th 1141 There, the plaintiff corporation filed a complaint in propria persona. (*Id.*, at p. 1144.) The trial court granted a motion to strike the complaint, without leave to amend, on the basis that the corporation filed it without representation and it was therefore a nullity. (*Id.*, at p. 1145.) The Court of Appeal reversed the ruling, holding that "it is more appropriate and just to treat a corporation's failure to be represented by an attorney as a defect that may be corrected, on such terms as are just in the sound discretion of the court." (*Id.*, at p. 1149.) The Court of Appeal further explained: "At such an early stage, denial of a motion to

strike or granting leave to amend to show representation by counsel on such terms as the trial court deems just will not frustrate the rule's purpose of guarding against the unlicensed practice of law and preventing its attendant problems.” (*Id.*, at p. 1150.)

Here, plaintiff has likewise filed a motion to strike a pleading filed by entity defendants without legal representation, in the early stage of litigation. Consistent with *CDC Construction*, and to serve judicial economy and fairness, the court exercises its discretion to deny the motion to strike, without prejudice, and provide the entity defendants time to retain counsel. (*CLD Construction, supra*, 120 Cal.App.4th at pp. 1145, 1149-1150.)

The court sets an Order to Show Cause Hearing for August 25, 2026 at 2:00 p.m. in Department 4 for the entity defendants to show they have an attorney representing them or to show cause why their answer should not be stricken and default entered in favor of plaintiff and against the entity defendants. The entity defendants shall either file an appearance by an attorney to represent them no later than seven court days before the hearing or file a response within the same deadline showing why their answer should not be stricken and default entered.

(Min. of Apr. 21, 2026; see also plaintiff’s Notice of Ruling filed Apr. 23, 2026; signed order filed and served Apr. 23, 2026.) On April 21, 2026, the clerk of the court served the notice of the order to show cause on all parties. The court notes that although the court mailed the notice of the order to show cause hearing and notice of the April 23, 2026 order to defendants at their address of record, the notices have been returned. It is defendants responsibility to update their address. (*Kramer v. Traditional Escrow, Inc.* (2020) 56 Cal.App.5th 13, 31; Cal. Rules of Court, rule 2.200.)

No attorney has substituted in for the entity defendants and there has been no response to the order to show cause by defendants despite the court warning them of the consequences of their failure to appear by counsel and providing them time to find a lawyer.

Accordingly, the court strikes the answer of One Trade LLC and One Trade and orders their default entered.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

2:00 PM

LINE 6

25-CIV-09171

ALEJANDRO CARRILLO VS. GENERAL MOTORS LLC

ALEJANDRO CARRILLO
GENERAL MOTORS LLC

CHAD A. DAVID
H, PAUL EFSTRATIS

PLAINTIFF'S MOTION TO DETERMINE THE AMOUNT OF REASONABLE ATTORNEY'S FEES, COSTS AND EXPENSES TO BE PAID BY DEFENDANT

TENTATIVE RULING:

Plaintiff Alejandro Carrillo's Motion to Determine the Amount of Reasonable Attorney's Fees, Costs and Expenses to be Paid by Defendant General Motors LLC ("GM") is GRANTED IN PART.

As a preliminary matter, it appears the memorandum of points and authorities in opposition was intended to be accompanied by a declaration. (See, e.g., Aug. 12, 2026 Memorandum of Points & Authorities, p. 6, ll. 5–7.) However, no such declaration has been filed.

As another preliminary matter, in the memorandum of points and authorities in opposition, GM cites to a trial court opinion—not as evidence of prevailing markets rates or other permissible purposes—but as authority for a legal proposition. Trial court opinions should not be cited and are of no precedential value. (*The Pep Boys Manny Moe & Jack of California v. Old Republic Ins. Co.* (2023) 98 Cal.App.5th 329, 341; see *Bolanos v. Superior Court* (2008) 169 Cal.App.4th 744, 761 [citation to trial court order as legal authority was improper].)

There is no dispute that the claims in this action have predominantly been settled, and the parties have agreed that Plaintiff Alejandro Carrillo and may seek, via this motion as prevailing plaintiff under the Song-Beverly Consumer Warranty Act ("SBCWA"), an award of costs and expenses reasonably incurred in bringing the action. (May 7, 2026 Declaration of Chad A. David ("David Decl."), ¶¶ 4–5, exh. 1.)

A buyer who prevails in an action under the SBCWA is entitled to recover costs and expenses, including attorney fees, reasonably incurred in connection with the commencement and prosecution of the action. (Civ. Code, § 1794; *Reynolds v. Ford Motor Co.* (2020) 47 Cal.App.5th 1105.) The Legislature has recognized that lawyers who take on Song-Beverly cases that seek to vindicate fundamental public policies will receive reasonable attorney fees. (*Reynolds, supra*, at p. 1111.)

Generally in this county, the parties have been able to negotiate their attorneys' fees in Song-Beverly actions without the necessity of bringing a motion. No agreement, however, was reached in this case. Thus, the Court decides the issue.
